SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 1118 of 2020 (YEAR: 2020)

CORAM: ARUN MISHRA, INDIRA BANERJEE, VINEET SARAN, M.R. SHAH, S. RAVINDRA BHAT

Sushila Aggarwal
... Appellant(s) / Petitioner(s)
Versus
State (NCT of Delhi)
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973
Sections:	Section 438 CrPC

JUDICIAL HEADNOTE & SUMMARY

Constitution bench held that anticipatory bail under Section 438 CrPC should not be invariably limited to a fixed time period and can continue until the conclusion of the trial.

RATIO DECIDENDI

The Court held that: Constitution bench held that anticipatory bail under Section 438 CrPC should not be invariably limited to a fixed time period and can continue until the conclusion of the trial. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Sushila Aggarwal v. State (NCT of Delhi) (Criminal Appeal No. 1118 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, particularly Section 438 CrPC. Constitution bench held that anticipatory bail under Section 438 CrPC should not be invariably limited to a fixed time period and can continue until the conclusion of the trial.

OPERATIVE ORDER

ORDER: Decided